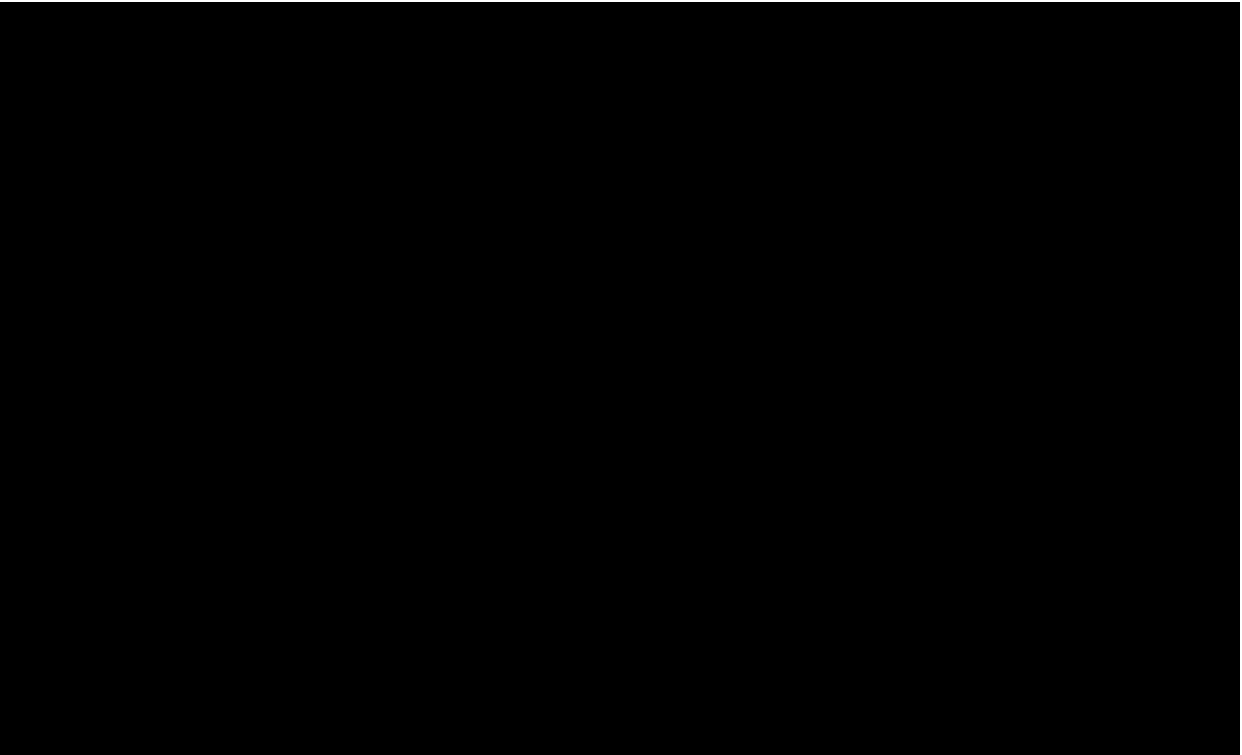


Serious Incident Reports Category 1 overview - Report prepared by the Fundamental Rights Officer

This report presents an overview of Serious Incidents Category 1 (situations of potential violations of fundamental rights) handled by the Frontex Fundamental Rights Office in the time frame 01/10 - 31/12/2025.

A. General Overview of Cases

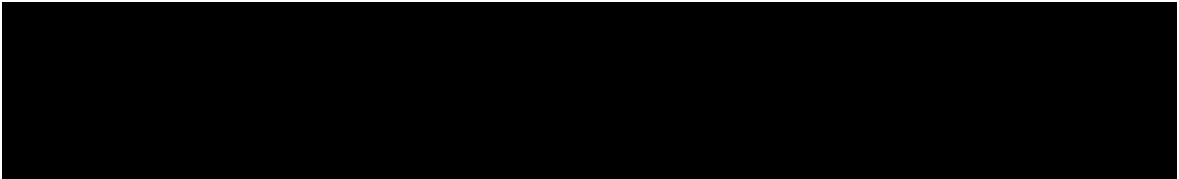
During the fourth quarter of 2025, eight cases were launched, selected from 51 preliminarily assessed reports of fundamental rights violations - potential serious incidents. In the same period, 13 Serious Incidents were closed with a final report. Chart 1 below shows the **eight newly launched**¹ cases by Member State and alleged fundamental rights violation. ongoing investigations



2. **Germany:** One Serious Incident clarifying the inclusion of an allegedly medically unfit returnee on a return flight from Germany.

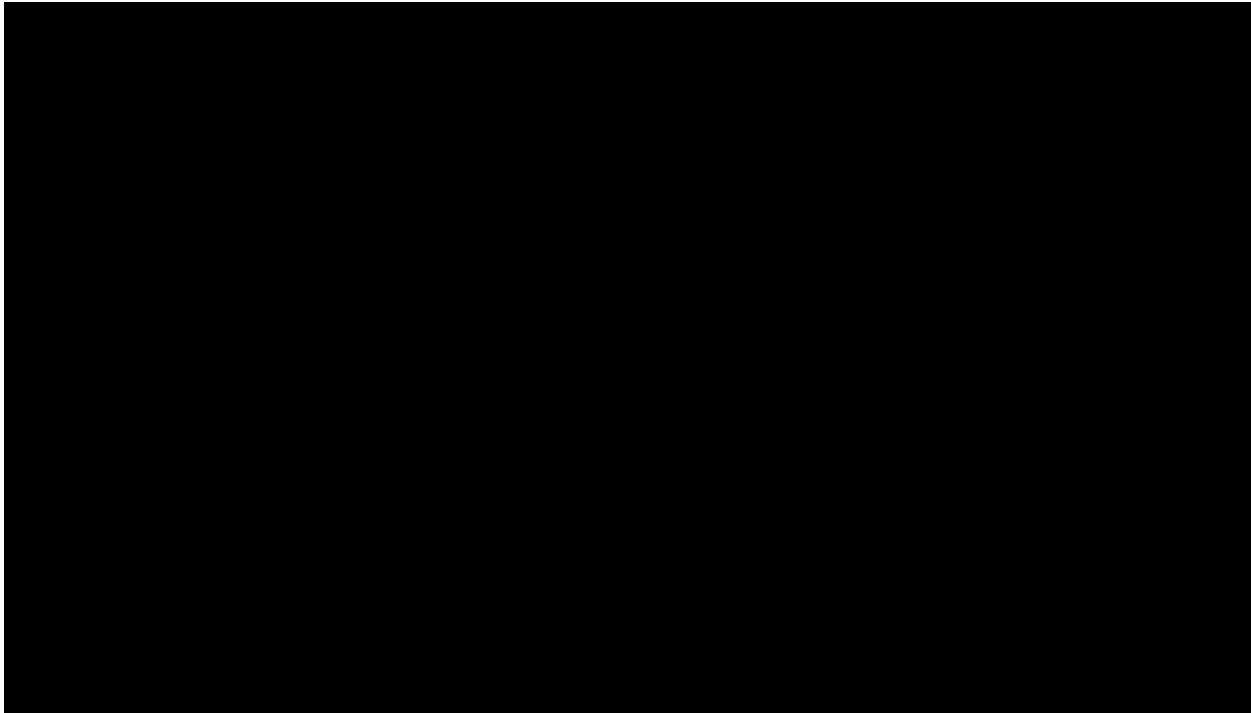


4. **Lithuania:** One Serious Incident was launched based on alleged denial of access to asylum procedure at the border crossing point with Belarus.



¹ The launched cases present alleged violations of fundamental rights with a link to Frontex activity, in which preliminary assessment concluded that initial information is quite reliable, sufficiently detailed and it is important to follow up in form of a Serious Incident procedure. Not all reported cases of possible fundamental rights violations can be launched as Serious Incidents. For example, in case of multiple reports of similar allegations, the Fundamental Rights Office may decide to investigate examples of the most severe cases only, given resource limitations. Importantly, launch of a Serious Incident does not per se confirm that a fundamental rights violation has occurred.

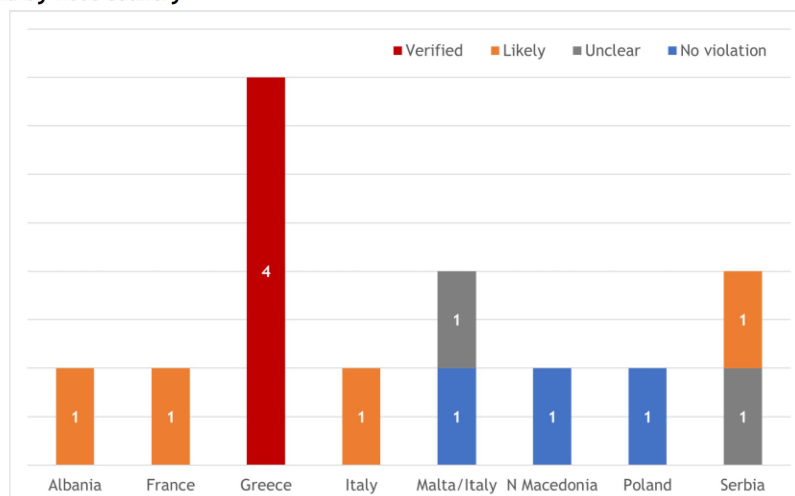
Chart 2 contextualises the numbers of launched Serious Incidents by contrasting overall figures of cases launched in 2023, 2024, and in 2025.



High numbers, particularly over time, of launched cases can illustrate a trend or point to frequent fundamental rights violations. Low numbers or absence of cases, on the other hand, do not automatically amount to the absence of violations or Fundamental Rights Office's lack of concern. Serious Incident reporting relies on a number of factors such as type of Frontex deployment, Frontex officers' access to activities and locations where fundamental rights violations are taking place, as well as the existence and access of local human rights organisations whose reporting may likewise trigger the Office's investigation.

During the reporting period, the Fundamental Rights Office **closed 13 Serious Incidents** with a final report. Chart 3 illustrates their distribution across Member States and distinguishes by type of conclusion in terms of whether a fundamental rights violation occurred.²

Chart No 3. Number of Serious Incidents Category 1 closed in Quarter 4 of 2025 by concluded likelihood of fundamental rights violation and by host country



² Findings of cases are classified according to four categories: 1) evidence proves/verifies the occurrence of at least one violation ("Verified"); 2) information gathered suggests that a violation likely occurred ("Likely"); 3) insufficient or inconclusive information ("Unclear"); 4) evidence proves that no violation occurred ("No violation").

Albania: The Fundamental Rights Office finalised one investigation into allegedly unlawful confiscation of mobile phones and irregular return to Greece, with the assessment that fundamental rights safeguards related to return activities were likely breached, however the seizure of mobile phones was most likely carried out under criminal procedure and was not assessed as a fundamental rights violation.

France: One Serious Incident enquiry into allegations of inadequate medical assessment and inclusion of a returnee unfit to fly in a return flight found that the right to life was likely violated due to shortcomings in the implementation of safeguards in Return Operations regarding the exchange of medical information for serious illness of returnees between the participating doctors.

Greece: The Fundamental Rights Office confirmed allegations in four Serious Incident reports. Two Serious Incident reports concluded that allegations related to inhuman and degrading transfer and detention conditions were verified. The Office also concluded that the right to life was violated when a migrant was shot dead during a pursuit by the Hellenic Coast Guard. The Office found that the Hellenic Coast Guard failed to follow the principles of necessity, proportionality, and precaution which need to be adhered to when the authorities are using force. In the fourth case, the Office established that the Greek authorities (the masked individuals acting under the instruction of the Greek officers) subjected the group of 61 migrants to inhuman and degrading treatment, involving physical and verbal abuse including death and rape threats, intrusive and sexualized body searches, beating with hands, legs, and batons, stabbing, cutting, shooting, restraining and forcing them to kneel and lie down for extended periods, drowning, theft of personal property; and without carrying out a reasonable and objective examination of the particular case of each individual, transported the group to the riverbank and then across the river back to Türkiye in boats. These actions are attributable to the Greek authorities and amount to prohibited collective expulsion.

Italy: The Fundamental Rights Office concluded that Italian authorities likely failed to implement adequate measures to protect the right to life of the returnee.

Malta/Italy: In one Serious Incident the Fundamental Rights Office determined that a migrant boat was intercepted by the Libyan Coast Guard in Maltese SRR after the Italian authorities shared the alert with them. However, the Office could not determine whether the actions undertaken or the lack thereof, in particular, whether alerting the Libyan authorities about the migrant boat was a necessary and proportional measure, and as such, the outcome of the case is “unclear”. Another Serious Incident enquiry was into allegations of delayed medical evacuation by Italian and Maltese authorities. Based on available operational information, the Fundamental Rights Office concluded that respective actors acted in accordance with their international law obligations, hence no violation of fundamental rights was found.

North Macedonia: In one Serious Incident a Frontex officer was alleged to have ignored asylum application during screening procedure, however the Fundamental Rights Office concluded that these allegations were unfounded, and no fundamental rights violation in that regard was found. However, the Office also established that fundamental rights safeguards related to the return activities were likely not upheld, resulting in an unprocessed departure of the migrant (possibly against their will) from North Macedonia.

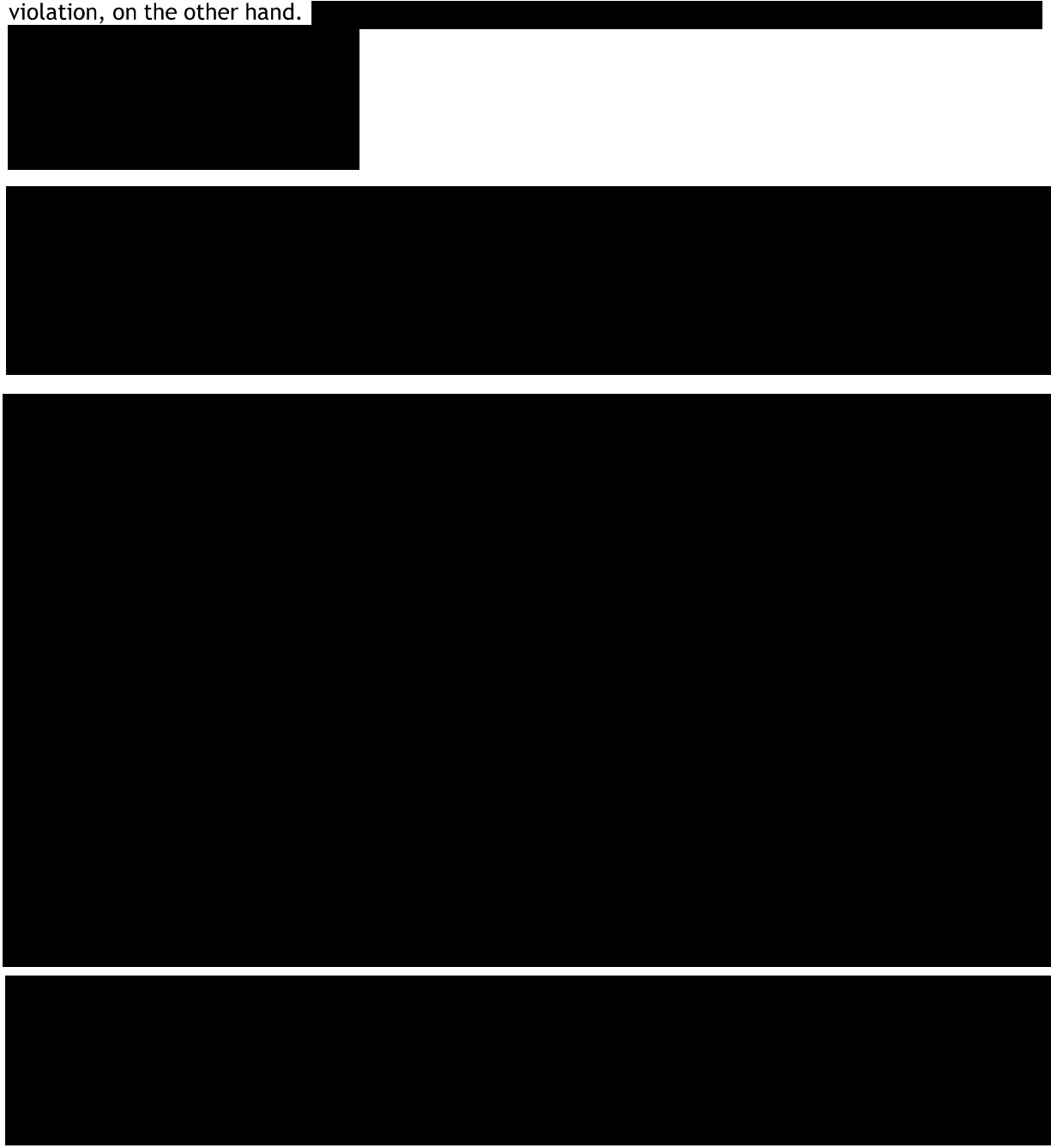
Poland: The Fundamental Rights Office concluded that the incident did not involve a violation of fundamental rights safeguards related to forced-return activities, specifically the presence of monitors in return operation. The investigation found that the mistake was an administrative error, and that both the Polish authorities and Frontex took steps to rectify the situation and ensure the national monitor's participation.

Serbia: The investigation in one Serious Incident concluded that a group of migrants was likely subjected to collective expulsion by Serbian police officers and established a failure to report fundamental rights violations by Frontex screening team on at least two occasions.

B. Frontex officers' involvement in fundamental rights violations in 2025

While most launched Serious Incident procedures allege that the officers of the Host State committed the fundamental rights violations, Frontex officers or assets are usually also involved in the incident. Under the Standard Operating Procedure on Serious Incident Reporting³, direct or indirect Frontex involvement is a necessary condition for initiation of a serious incident.

The Fundamental Rights Office collects data on the level of involvement of Frontex officers⁴ in reported fundamental rights violations. A distinction is made between cases where Frontex officers were not involved or merely learned about incidents without possibility to intervene on the one hand, and cases where Frontex officers indirectly or directly contributed to the fundamental rights violation, on the other hand.



³ A Serious Incident is an event, caused by an action or failure to act by a person, or by force of nature, which directly or indirectly involves Frontex participants or assets [...] (Article 2.1 of the Decision of the Executive Director No R-ED-2021-51 on Standard Operating Procedure (SOP) - Serious Incident Reporting of 19/04/2021).

⁴ In this paper, "Frontex officers" is used to refer to all members of the Frontex Standing Corps.

Bulgaria: the Fundamental Rights Office established that the migrants were likely at risk of being collectively expelled to Türkiye before the arrival of the Frontex officers (in addition, the investigation concluded that the right to asylum and prohibition of ill-treatment were likely violated by Bulgarian officers).

Frontex Multipurpose Aerial Surveillance Services (Libya): One Serious Incident concluded that the failure to locate the migrant boat and save life was likely caused by the several factors (standalone or in combination), including shortcomings related to Frontex internal operation reporting and gaps in communication with respective search and rescue actors. In another case the Fundamental Rights Office considers possible that the Libyan Coast Guard fired shots at a migrant boat, after Frontex shared the alert with the respective Libyan authorities.

Greece: the Fundamental Rights Office concluded that after Frontex officers apprehended and handed-over the migrants, the local authorities likely failed to conduct proper identification and registration procedures, including by giving due attention to potential special needs of the migrants.

Spain: The Fundamental Rights Office found it likely that safeguards related to the right to privacy and to the confidentiality and voluntary nature of debriefing interviews were violated in one Serious Incident.

Serbia: The investigation in one Serious Incident concluded that a group of migrants was likely subjected to collective expulsion to Bulgaria by Serbian police officers and established a failure to report fundamental rights violations by Frontex screening team on at least two occasions. In the view of the Fundamental Rights Office, these omissions point to shortcomings, which are systemic.

Italy: The Fundamental Rights Office found it likely that Italian authorities failed to implement adequate measures to protect the right to life of the returnee. The investigation also assessed allegation of inhuman or degrading treatment by Frontex officer and concluded that they acted in accordance with the Code of Conduct and in line with the principles of use of force.

C. National authorities support to Serious Incident procedure and follow-up

The Fundamental Rights Office periodically follows up with the national authorities of Host and Member States to ascertain the status of national investigations, which were ongoing at the time of the closure of the respective Serious Incident or were launched later.

In the last follow-up completed in 2025, the Office requested information about cases concluded in the period 01/2024 - 06/2025. During this period, 69 Serious Incidents were finalised. Of which in 53 cases the Office concluded that fundamental rights were likely violated or found strong evidence to prove violations of fundamental rights. The Office inquired the national authorities of Host and Member States about 52 of such cases.

The national authorities informed about the following: in 20 cases internal investigations were launched and finalised, in nine cases investigations are still ongoing, in 23 cases the national authorities did not provide any information or replied that no internal or national proceedings were conducted.

Of 20 finalised internal investigations, in the 17 cases national authorities found no wrongdoing, while the conclusions of the remaining three cases were not shared with the Office. The Office highlights that none of the internal investigation parallel to a Serious Incident procedure has found guilt or determination of liability on the part of those alleged to have committed the fundamental rights violation.

The Fundamental Rights Office emphasizes once again that allegations are often investigated by internal control offices belonging to the same institutions whose involvement in fundamental rights violations has been reported. This aspect puts at risk the independence and transparency of the investigations. To this end, the Fundamental Rights Office has advised on several occasions national authorities to follow up internal investigations with independent inquiries. However, to the Office knowledge and regret not more than six cases out of 52 were actually investigated by independent institutions or national courts.

The Fundamental Rights Office will continue to underline the importance of State authorities' support to its investigations of possible violations of fundamental rights in the context of Frontex activities and recalls the conclusions of the Frontex Management Board⁵ which recommend Host Member States, *inter alia*:

- To ensure proper, efficient, and independent follow-up, including disciplinary and criminal investigations, as appropriate.
- To provide updates, proactively or on request by the Fundamental Rights Office, about any ongoing or completed national investigations/proceedings into closed Serious Incidents concerning incidents that took place within the framework of joint activities [...].

⁵ Conclusions of the Management Board on Ensuring National Authorities' Active Support and Cooperation in Serious Incident Investigations Conducted by Frontex' Fundamental Rights Office, 19/06/2024, [Management Board conclusions: Serious incident mechanism and fundamental rights \(europa.eu\)](#)